

STATE OF NEW YORK

8617--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. McDONALD, STECK, LEVENBERG, WOERNER, BLANKENBUSH, MILLER, SIMPSON -- read once and referred to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to enacting the "Mohawk River Basin management act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Mohawk River Basin management act".

3 § 2. The environmental conservation law is amended by adding a new
4 section 11-0306-b to read as follows:

5 § 11-0306-b. Mohawk River Basin management program.

6 1. There is hereby established a Mohawk River Basin district which
7 shall include the Mohawk River from its headwaters in Lewis county to
8 its mouth at the Hudson River at Cohoes. The district shall include the
9 Mohawk River's watershed, including all tributaries and the portion of
10 the New York state Barge Canal that is in or connected to the Mohawk
11 River.

12 2. The department shall establish and maintain a Mohawk River Basin
13 management program for the Mohawk River Basin district, in order to
14 preserve, protect, restore and enhance the quality of the Mohawk River
15 Basin district, and to promote the integrated and coordinated management
16 of its watershed, with consideration to the Mohawk River's influence on
17 the Hudson River and estuary, as well as the influence of the New York
18 state Barge Canal.

19 3. The commissioner shall appoint a Mohawk River Basin management
20 advisory committee to provide guidance on regulatory, policy, and other
21 matters affecting the management, protection, and use of the Mohawk

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13076-02-6

1 River Basin district and to assist in the development of a Mohawk River
2 Basin management program. The committee shall consist of not less than
3 eleven members representing interests directly involved in the Mohawk
4 River Basin district, including but not limited to representatives of
5 drinking water suppliers, recreational fishing, recreational and commer-
6 cial boating, tourism, research, conservation, natural resources manage-
7 ment, agriculture and regional planning. The Mohawk River Basin manage-
8 ment advisory committee shall also include ex-officio members of
9 relevant state agencies and authorities, as determined to be needed by
10 the commissioner by invitation. Representatives of relevant federal
11 agencies may also be invited to participate as ex-officio members.

12 4. The commissioner shall maintain in the department the position of
13 Mohawk watershed coordinator to assist the commissioner and the advisory
14 committee in the implementation of the Mohawk River Basin management
15 program.

16 5. The department, in cooperation with the Mohawk River Basin manage-
17 ment advisory committee, shall publish an ecosystem-based management
18 strategy for the Mohawk River Basin district and an action agenda to
19 implement the identified management strategies. The action agenda should
20 be updated by January first, two thousand twenty-eight and on a regular
21 basis thereafter, at intervals not greater than ten years. Subject to
22 consultation with the Mohawk River Basin management advisory committee,
23 the management strategy and action agenda shall include, but not be
24 limited to strategies to address issues related to climate change and
25 resilience, land use and development, fisheries and habitats, point and
26 non-point source pollution, drinking water, recreation and canal infras-
27 tructure. Subject to consultation with the Mohawk River Basin advisory
28 committee, the management strategy and action agenda shall include, but
29 not be limited to the following goals: improving water quality to reduce
30 risks to human health, safeguard water supplies, provide safe recre-
31 ational opportunities and protect aquatic habitats; enhancing fisheries
32 and habitats to increase fish populations, mitigate the spread of inva-
33 sive species and support recreational angling opportunities; supporting
34 community planning and the sustainable use of working landscapes to
35 enhance the resilience of Mohawk River communities and their ability to
36 recover from extreme weather events and disturbances; and improving and
37 increasing recreation and stewardship by creating and fostering partner-
38 ships and stakeholder engagement through education, outreach and collab-
39 oration.

40 6. Within one year of the effective date of this section, the Mohawk
41 watershed coordinator appointed pursuant to subdivision four of this
42 section shall develop a plan for the prevention of the proliferation of
43 all taxa of aquatic invasive species in and through the Mohawk River
44 Basin district, in consultation with the department, the New York state
45 canal corporation, and the Mohawk River Basin program advisory commit-
46 tee. Such plan shall be submitted to the commissioner and the chair-
47 persons of the assembly and senate committees on environmental conserva-
48 tion and posted on the department's website no later than one year after
49 the effective date of this section. The plan shall identify strategies
50 to prevent the passage of aquatic invasive species across historical
51 watershed divides connected via the New York state Barge Canal. Such
52 plan shall then be integrated into the action agenda developed under
53 subdivision five of this section.

54 7. On or before January first of each year, the Mohawk watershed coor-
55 dinator shall report on the progress of the Mohawk River Basin manage-
56 ment program, including via a report submitted to the chairpersons of

1 the assembly and senate committees on environmental conservation on or
2 before March first of each year and posted on the department's website.

3 8. The Mohawk River Basin management advisory committee shall report
4 to the commissioner from time to time, and at least annually on or
5 before December first of each year on its activities, concerns, and
6 recommendations for the Mohawk River Basin district.

7 9. The Mohawk watershed coordinator shall consult with the Mohawk
8 River Basin management advisory committee regularly in preparing and
9 implementing the watershed management strategy and action agenda under
10 this section, as well as relevant regulatory or policy changes affecting
11 the Mohawk River Basin district.

12 § 3. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law. Effective immediately, the addition, amend-
14 ment and/or repeal of any rule or regulation necessary for the implemen-
15 tation of this act on its effective date are authorized to be made and
16 completed on or before such effective date.